

Trust Deed

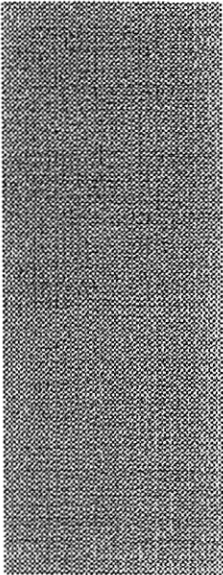
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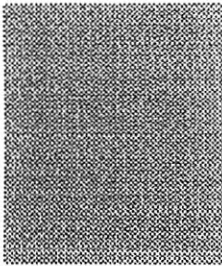
Hubbas Pty Ltd

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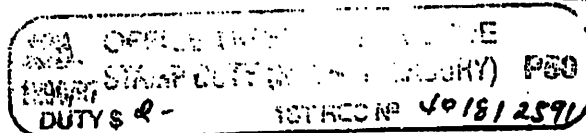
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Tom Lane Group Trust



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This **TRUST DEED** is made the day mentioned in the Schedule hereto
BETWEEN the person named and described in the Schedule as the Settlor (hereinafter called "the Settlor")
of the one part
AND the person or persons named and described in the Schedule as the Trustee or Trustees (hereinafter
called "the Trustees") of the other part

WHEREAS the Settlor is desirous of making provision for the persons hereinafter referred to as and in the
manner hereinafter set out **AND WHEREAS** for the said purpose the Settlor has prior to the execution
hereof transferred to the Trustees the settled sum referred to in the Schedule

AND WHEREAS the Trustees have consented to become the Trustees hereof upon the Trust and with and
subject to the powers and provisions hereinafter expressed **AND WHEREAS** the Trust constituted by this
Deed shall be known by the distinguishing name if any set forth in the Schedule.

1. INTERPRETATION

A. In this Deed unless the contrary intention appears or there is something repugnant to or
inconsistent with the subject matter, the following expressions have the meanings hereunder set
out:-

- (a) "Accounting Period" shall mean each period of twelve months ending on the 30th day
of June in each year **PROVIDED** first that the period commencing on the date hereof
and ending on the 30th day of June next shall be an Accounting Period and secondly
that the period commencing on the first day of July prior to the Vesting Day and
ending on the Vesting Day shall be an Accounting Period.
- (b) "Applicable Law" means the law of the State or Territory referred to in the Schedule
provided that if this specification may not lawfully be made or will not be given effect
to by any Court before which this Deed shall come in question the applicable law shall
be the law which such Court determines.
- (c) "Beneficiaries" mean and include:
 - (i) the person or persons named in the Schedule;
 - (ii) the grandparents, parents, brothers, sisters, spouses, widows, widowers,
children and remoter issue and next of kin of the person or persons named in the
Schedule and the spouses, widows, widowers, children and grandchildren of such
parents, brothers and sisters, spouses, children and remoter issue and next of kin;
 - (iii) any person or corporation (not being the Settlor) determined by the Trustee
or the Principal to be a beneficiary for the purposes of this Deed;
 - (iv) the trustee or trustees of any other trust (howsoever created) of or in which
this Trust is a beneficiary or holds an interest (subject to there being no infringement of
the rule against perpetuities including the rule against perpetual trusts);
 - (v) the trustee or trustees of any other trust the capital or income of which is or
may be held in whole or in part (and whether absolutely contingently or otherwise) for
any one or more of the persons referred to in the preceding paragraphs (i) to (iii) of
this definition;

- (vi) any other legal entity being an entity in which or which is related to or associated with an entity in which a share or a beneficial interest' whether present or contingent is held by any one or more of the persons referred to in the preceding paragraphs (i) to (iii) of this definition.
- (d) "Capital Profits" means capital profits or gains or like amounts of a capital nature arising from a disposal of the whole or part of the Trust Fund or arising by any other means in relation to the Trust Fund and calculated in accordance with the law of trusts and standard accounting procedures for trusts.
- (e) "Child" includes an adopted, ex-nuptial or foster child or a step-child.
- (f) "Clause" means a Clause of this Deed.
- (g) "Corporation" means any statutory corporation, corporation sole or company formed or incorporated according to law.
- (h) "Distribute" means to pay, apply or set aside.
- (i) "Foreign Income" means income derive from sources in a foreign country (and includes any amount included in assessable income by attribution under the foreign accruals system of taxation) as determined pursuant to the Tax Act.
- (j) "Franked Dividends" means dividends the whole or part of which are taken to have been franked under Part IIIAA of the Tax Act.
- (k) "Futures Contract" has the meaning assigned to that term in the Corporations Law.
- (l) "Income" means Trust Income but if the Trustee on or before the last day of the Accounting Period declares in writing that this definition shall not apply in relation to that Accounting Period, then "Income" shall mean Net Income.
- (m) "Investment Fund" means any cash management trust, unit trust, mutual fund, venture capital fund or similar undertaking or similar entity.
- (n) "Net Income" means the net income of the Trust determined in accordance with Section 95(1) of the Tax Act.
- (o) "Pay" includes transfer, assign and convey.
- (p) "Principal" means the person named in the Schedule and the person or persons nominated by the person named in the Schedule in writing inter vivos or by will to succeed the person named in the Schedule during his lifetime or upon his death as the Principal or if no such person shall be nominated then upon the death of the person named in the Schedule the legal personal representatives of the person named in the Schedule. In the case of two or more persons named or nominated as aforesaid as the Principal, no power or authority or direction by the Principal shall be valid or effective unless the same is jointly exercised by all such persons.
- (q) "Property" means real, personal, moveable or immovable property of any description and wheresoever situate including (without limiting the generality hereof) policies of assurance or endowment, cash and choses in action.
- (r) "set aside" in relation to a Beneficiary includes placing sums to the credit of such Beneficiary in the books of the Trust Fund.

- (s) "Spouse" includes a defacto spouse, being a woman living with a man as his wife or a man living with a woman as her husband (as the case may be) on a bona fide domestic basis, although not legally married to each other.
- (t) "Tax Act" means the Income Tax Assessment Act 1936.
- (u) "Trust" means the trust constituted by this Deed.
- (v) "Trust Fund" means:
 - (i) the Settled Sum;
 - (ii) any further or additional Property donated to, assigned to, transferred to or vested in or caused to be vested in the Trustee to be held upon the trusts and subject to the powers and provisions of this Trust;
 - (iii) the proceeds of sale, redemption or other dealing with the Settled Sum or other property;
 - (iv) any accumulation of Income directed or empowered to be made in this Deed;
 - (v) money lent to or advanced to the Trustee pursuant to this document;
 - (vi) all accretions to, or the income, profits or gains of, any of those things referred to in sub-paragraphs (i) to (v) of this definition; and
 - (vii) Property of every description for the time being and from time to time representing the property referred to in sub-paragraphs (i) to (vi) of this definition.
- (w) "Trust Income" means the income produced from the investment of the Trust Fund and/or the Property thereof or from any other income producing activity after allowing for the expenses of the Trust calculated in accordance with the law of trusts and standard accounting procedures for trusts and any Capital Profits.
- (x) "Trustee" means the person or persons named as such in this Deed or other the Trustees or Trustee for the time being and from time to time of this Trust whether original, additional, surviving, alternate or substituted and whether the same be a natural person or persons, companies, corporations or otherwise or one or more classes of them severally.
- (y) "Unfranked Dividends" means dividends, (including dividends that are not frankable dividends) the whole or part of which has not been franked under Part IIIA of the Tax Act.
- (z) "Vesting Day" shall mean the first to occur of the following dates:
 - (i) the day upon which shall expire the period of 80 calendar years commencing on the date of the making of this Deed;
 - (ii) the last survivor of all the lineal descendants male and female now living of His late Majesty King George VI of England;
 - (iii) the day which the Trustee may at any time in the absolute discretion of the Trustee determine to be the vesting day,

provided always that notwithstanding anything in this Deed to the contrary all powers and dispositions made by or pursuant to or contained in this Deed which but for this provision would or might vest take effect or be exercisable after the Vesting Day shall vest and take effect and be exercisable only until the Vesting Day.

B. In this Deed, unless the context indicates otherwise:

- (a) the singular shall mean and include the plural and vice versa and any gender shall mean and include all other genders.

- (b) headings in this Deed are for convenience only and shall not affect the interpretation of this Deed;
- (c) references to persons shall include a Corporation;
- (d) references to a person shall include the legal personal representatives, successors and assigns of that person;
- (e) reference to a statute, ordinance, code or other law includes regulations and other statutory instruments under it and consolidations, amendments, re-enactments or replacements of any of them (whether of the same or any other legislative authority having jurisdiction);
- (f) references to writing include any mode of representing or reproducing words in tangible and permanently visible form, and includes telex and facsimile transaction;
- (g) references to authorities and bodies, whether statutory or otherwise, shall be deemed to include references to the delegates of those authorities and bodies whether appointed by statute or otherwise;
- (h) the expression "the Beneficiaries", shall include persons, Corporations and the trustee or trustees of trusts who or which from time to time until the Vesting Day come within the definitions contained in this Deed or within any description in this Deed notwithstanding that such persons, Corporations, trustee or trustees may not have been born or be in existence or have come into the defined categories at the date of this Deed and, in the case of such trustee or trustees notwithstanding that the trust or settlement of which he is a trustee or they are trustees have not been formed or come into existence or do not fall within the defined category at the date of this Deed providing that there is no infringement of the rule against perpetuities including the rule against perpetual trusts.

2. SETTLOR DECLARATION

- A. The Settlor hereby declares and directs (and the Trustee hereby acknowledges and accepts such declaration) that:
- B. No part of the Trust Fund or the Income shall ever revert to or be held in trust for the Settlor or the Settlor's estate, it being the intention of the Settlor that the Beneficiaries shall take in any event.
- C. The Trustee shall hold the Trust Fund upon the trusts and with and subject to the powers and provisions contained in this Trust.
- D. The Trustee shall have power at any time and from time to time until the Vesting Day, in the absolute discretion of the Trustee, to accept such additional Property as may be donated to, assigned to, transferred to or vested in it to be held upon and subject to the trusts contained in this Deed.

3. INCOME OF TRUST

- A. The Trustee shall in each Accounting Period determine the Income.
- B. In determining the Income, the Trustee may classify the Income into one or more such classes as it may in its absolute discretion determine and may account separately for each such class of

Income or part thereof. Without limiting the generality of the foregoing in such determination the Trustee may identify and account separately such part of the Income (if any) which represents:

- (a) any Capital Profits;
- (b) the amount of any Franked Dividends;
- (c) the amount of any Unfranked Dividends;
- (d) any Foreign Income;
- (e) any difference between Trust Income and Net Income before tax.

C. The Trustee may at any time prior to the expiration of any Accounting Period (or such other time as the Commissioner of Taxation may allow for the purposes of the Tax Act) determine with respect to all or any parts of the Trust Income or Income for that Accounting Period, to do all or any of the following:

- (a) to Distribute the same or any part thereof to all or one or more of the Beneficiaries living or in existence at the time of the determination;
- (b) to accumulate the same or any part thereof.

D. The following rules shall apply to any determination made pursuant to Clause 3C:

- (a) any distribution of Income will, unless otherwise specified by the Trustee, be deemed to have firstly been made out of Net Income;
- (b) any determination to accumulate Income shall be conditional upon the law in force in relation to this Deed giving effect to such determination at the end of the Accounting Period but except as provided in this Clause 3D each such determination shall be irrevocable;
- (c) if at the end of any Accounting Period the amounts in respect of which determinations have been made pursuant to Clause 3C exceed the Income for the Accounting Period the amount of the excess shall firstly be deducted from the amount or amounts (if any) which the Trustee has determined to accumulate and only the balance of such amount or amounts (if any) shall from that time on be accumulated and if after such deduction the amounts in respect of which determinations have been made pursuant to Clause 3C still exceed the Income for the Accounting Period then the Trustee shall be deemed to that extent to have applied the capital of the Trust Fund pursuant to Clause 5 pro rata across the accounts in respect of which determinations have been made;
- (d) any determination may be made in writing signed by the Trustee or by resolution duly passed at a meeting of the Trustee;
- (e) a determination to Distribute any amount for any Beneficiary may be made by, among other things:
 - (i) placing such amount to the credit of the Beneficiary in the books of the Trust Fund;
 - (ii) drawing a cheque in respect of such amount, made payable to, or for the credit or benefit, of the beneficiary; or
 - (iii) paying the same in cash to or for the benefit of the Beneficiary;
- (f) the Trustee shall have a complete discretion as to the making of any determination and shall not be bound to assign any reason for the determination;

- (g) in making any determination to Distribute any amount the Trustee may:
- (i) exclude any Beneficiary; and
 - (ii) determine to Distribute such amount between the Beneficiaries in such proportions and in such manner as the Trustee in the absolute discretion of the Trustee shall deem fit.
- E. The amount of any accumulation shall be dealt with as an accretion to the Trust Fund, but so that the Trustee may at any time or times resort to all such accumulations and Distribute the whole or any part or parts of those accumulations as if it or they were Income.
- F. If the Trustee has not by the last day of the Accounting Period exercised the discretion vested in the Trustee pursuant to Clause 3C to Distribute or accumulate the whole or any part of the Income then the Trustee shall hold the income not so Distributed or accumulated for that Accounting Period in trust for the Beneficiaries named in the Schedule and if more than one in equal shares.
- G. Any amount set aside for any Beneficiary or held by the Trustee in trust for a Beneficiary pursuant to Clause 3F shall not form part of the Trust Fund but shall be held by the Trustee as a separate trust fund upon trust for the Beneficiary absolutely, with power to the Trustee, pending payment of the amount to such Beneficiary, to invest or apply for the benefit of such Beneficiary or deal with such fund or any resulting income from such fund or any part thereof in the manner provided for in this Deed in relation to the Trust Fund.
- H. It is declared that each of the Beneficiaries in whose favour the Trustee Distributes the Income for an Accounting Period or failing the exercise of the Trustee's discretion to Distribute or accumulate who are entitled to share in the Income for that Accounting Period shall have an immediate and indefeasible vested interest in that part of the Income for that Accounting Period to which that Beneficiary is entitled, it being the express intention of the Settlor (as the Trustee acknowledges) that such of the Beneficiaries in whose favour the Trustee shall Distribute the Income, or failing the exercise of the Trustee's discretion to Distribute or accumulate who are entitled to share in the Income, shall be presently entitled to his or her share of Income.
- I. Any Income to which a Beneficiary becomes entitled or which the Trustee determines is to be Distributed to the Beneficiary may be Paid or applied in any one or more of the following ways:
- (a) to the Beneficiary;
 - (b) to the Beneficiary's Spouse;
 - (c) to a bank account in the name of the Beneficiary or in the Beneficiary's name and the name of the Beneficiary's Spouse;
 - (d) where the Beneficiary has not attained the age of 18 years:
 - (i) to the Beneficiary's parent, guardian or other person or persons for the time being having the care and custody of the Beneficiary;
 - (ii) to a bank account in the name of the Beneficiary or in the Beneficiary's name and the name of the parent, guardian or other person or persons for the time being having the care and custody of the Beneficiary,

and the receipt of such Beneficiary, Spouse, parent, guardian or other person or persons or banker shall be a good and sufficient discharge and receipt to the Trustee in that behalf and the Trustee shall not be bound to see to the proper application of the amount so paid.

4. CAPITAL OF TRUST

- A. Until the Vesting Day the Trustee shall have the power from time to time to pay or apply such part or parts of the capital of the Trust Fund as the Trustee may in its absolute discretion deem fit to or for the benefit of the Beneficiaries or such one or more of them exclusive of the others and in such shares or proportions as the Trustee in its absolute discretion may determine.
- B. On and from the Vesting Day the Trustee shall stand possessed of the Trust Fund or so much thereof as shall be then remaining in trust for the Beneficiaries then living or such one or more of them exclusive of the other or others of them and in such shares and proportions as the Trustee in its absolute discretion may determine prior to the Vesting Day.
- C. In default of any determination by the Trustee under Clause 4B then the Trust Fund shall be held by the Trustee upon trust for such of the Children of the Beneficiaries named in the Schedule as shall then be living in equal shares as tenants in common provided that if any Child of the Beneficiaries named in the Schedule has died prior to the Vesting Day leaving a Child or remoter issue of such deceased Child living on the Vesting Day then such Child or remoter issue and if more than one then in equal shares shall take the share of such deceased Child or if there shall on the Vesting Day be no Child or remoter issue of the Beneficiaries named in the Schedule then surviving then upon trust for any other Beneficiaries then living and if more than one then in equal shares or if there shall on the Vesting Day be no Beneficiaries then surviving then upon trust for such charity or charities and in such proportions as the Trustee shall in its discretion determine.
- D. Where any Beneficiary chosen by the Trustee has not attained the age of 18 years the Trustee may pay the proportion of the Trust Fund appointed to that infant Beneficiary in any one or more of the following ways:
- (a) to the Beneficiary;
 - (b) to the Beneficiary's parent, guardian or other person or persons for the time being having the care and custody of the Beneficiary;
 - (c) to a bank account in the name of that Beneficiary or in the Beneficiary's name and the name of the parent, guardian or other person or persons for the time being having the care and custody of the Beneficiary,

and the receipt of such Beneficiary, parent, guardian, or other person or persons or banker shall be a good and sufficient discharge and receipt to the Trustee in that behalf and the Trustee shall not be bound to see to the proper application of any amount so paid.

5. TRUSTEE POWER OF PAYMENT OR APPLICATION FOR BENEFICIARIES' BENEFIT

Notwithstanding any other provision in this Deed, the Trustee may in its absolute discretion and from time to time:

- (a) prior to the Vesting Day pay or apply the whole or any part of the capital, Income or accumulated income of the Trust Fund towards the maintenance advancement benefit or education of all or any one or more exclusively of the others of the Beneficiaries then living or in existence and in such proportions or manner as the Trustee shall in the absolute discretion of the Trustee from time to time deem fit;

- (b) without limiting or restricting any express trust declared in this Deed pay or apply the whole or any part of the Income towards the maintenance advancement benefit or education of any infant Beneficiary who is absolutely entitled to such Income;
- (c) in paying or applying capital or Income or any part thereof to or for the benefit of any Beneficiary (whether an infant or not) the Trustee may without being responsible for any loss pay the same to a savings deposit or loan account in any Bank or Building Society and may open an account for such purpose;
- (d) where any Beneficiary chosen by the Trustee pursuant to Clause 5(a) has not attained the age of 18 years the Trustee may pay or apply the amount of capital, Income or accumulated income of the Trust Fund appointed to that infant Beneficiary in any one or more of the following ways:
 - (i) to the Beneficiary;
 - (ii) to the Beneficiary's parent, guardian, or other person or persons for the time being having the care and custody of the Beneficiary;
 - (iii) to a bank account in the name of the Beneficiary or in the Beneficiary's name and the name of the parent, guardian or other person or persons for the time being having the care and custody of the Beneficiary,

as the Trustee in the absolute discretion of the Trustee shall deem fit and the receipt of such Beneficiary, parent, guardian or other person or persons or banker shall be a good and sufficient discharge and receipt to the Trustee in that behalf and the trustee shall not be bound to see to the proper application of any amount so paid;

- (e) at any time, allow any Beneficiary to occupy, have custody of or use any immovable property or chattels which, at the relevant time, form part of the Trust Fund, on such terms or conditions as to inventories, repair, replacement, insurance, outgoings or otherwise as the Trustee determines;
- (f) appropriate any part of the Trust Fund in the actual condition or state of investment thereof at the time of appropriation in or towards satisfaction of the share of any person in the Trust Fund as the Trustee may deem just and reasonable.

6. EXPENSES OF TRUST

- A. Subject to Clause 11 the expenses in connection with the administration of this Trust including the remuneration and charges of the Trustee (if any) provided for in this Deed and of the investment and re-investment of any part of the Trust Fund and the collection of Income and other sums derivable therefrom shall be charged against the income of the Trust Fund but if such income is insufficient for the purpose then the same shall be charged against the capital of the Trust Fund or so much thereof as may be required in addition to the income for the purpose.
- B. Any Trustee being a Corporation authorised by the laws of any State or Territory of Australia to take in its own name a Grant of Probate of the Will of a deceased person may charge and be paid as an expense of the Trust Fund remuneration in accordance with its scale of fees from time to time in force, and may without accounting for any resultant profit act as banker and perform any service on behalf of the Trust and on the same terms as would be made with a customer.

- C. Any Trustee (not being a Corporation referred to in Clause 6B) may charge and be paid as an expense of the Trust Fund such remuneration as the Trustee in its absolute discretion shall consider reasonable provided that in respect of any Accounting Period the total remuneration paid to the Trustee shall not exceed the aggregate 10% of the gross income of the Trust Fund received during that Accounting Period and 5% of the value of any portion of the Trust Fund that the Trustee may during that Accounting period have paid to or applied to or applied to or for the advancement or benefit of or vested in any of the Beneficiaries under the provisions of this Deed or in or towards satisfaction of a share in the Trust Fund provided further that a Trustee being a solicitor or chartered or public accountant may in respect of any such Accounting Period elect to charge and be paid as an expense of the Trust Fund usual professional and other charges for all business transacted, time spent and acts done by that Trustee or that Trustee's firm in connection with the powers, provisions and requirements of this Trust in that Accounting Period including the acts which a Trustee not being a solicitor or chartered or public accountant could have done personally.
- D. The Trustee shall not be required to give bond or security for the due and faithful administration of the trust or for the discharge of the trusts provided in this Deed.

7. TRUSTEE POWERS AND DUTIES

The Trustee shall have power to make or vary or sell any investment and to engage in any transaction or dealing on behalf of the Trust as the Trustee could do if the Trustee were the beneficial owner of the Trust Fund absolutely entitled thereto for the purpose of preserving for Beneficiaries as far as possible the assets comprising the Trust Fund and any increments in the value of those assets which might appear from time to time to be in jeopardy.

8. TRUSTEE - ADDITIONAL POWERS

- A. Without prejudice to the generality of Clause 7 and to the intent that the authority conferred by Clause 7 shall not in any way be restricted or limited the Trustee, in addition to the powers otherwise conferred upon trustees by law, shall have the following powers:
- (a) to apply and invest all moneys at any time forming part of the Trust Fund in any such investments whether involving liabilities or not or upon personal credit with or without security and upon such terms and conditions as the Trustee shall in its absolute discretion think fit and to the intent that the Trustee shall have the same power in all respects as if it was the absolute owner beneficially entitled to such moneys including without diminishing the generality of the foregoing the subscription for the taking up on allotment and the purchase of any share stocks bonds mortgages debentures obligations or securities of any government authority or company incorporated in any part of the world and the taking of and the purchase or acquisition of the whole or any part or share or interest in (including a minority part or share or interest in) any business or partnership and the goodwill and assets thereof and the purchase or acquisition of any real or personal property wheresoever situate or any part or share or interest therein and notwithstanding that the same may not be income producing or be of a wasting or speculative nature and to exercise all rights and privileges and perform all duties and obligations appertaining or incidental thereto;

- (b) to make or purchase any such investments for cash or in consideration of an annuity or otherwise and upon such terms and conditions as the Trustee shall in its absolute discretion think fit and it may make or purchase any such investment for a sum greater than the amount of the Trust Fund for the time being and it may agree to pay for any such investment wholly or in part from any future moneys which may come into its hands including dividends, profits, interest or other income paid or payable in respect of any such investments.
- (c) to enter into any agreement of any kind with, to advance lend moneys and otherwise extend credit to, to borrow raise moneys and otherwise receive credit from, to give any guarantee indemnity or bond for the payment of money or the performance of any contract obligation or understanding by, to become surety or security for or to incur any obligation in favour of, any person or association (whether incorporated or unincorporated) or governmental or municipal body, and upon terms (with or without security or interest) as the Trustee determines and the Trustee is expressly empowered to enter into obligations or to receive obligations either alone, in association, jointly or jointly and severally with any person or association (whether incorporated or unincorporated) or governmental or municipal body;
- (d) to secure any moneys borrowed, raised or other credit received by the Trustee and the performance of any obligation or undertaking including any contingent obligation incurred by the Trustee by any mortgage, charge, lien or other security over all or any part of the Property of the Trust Fund (including future Property) as the Trustee determines;
- (e) to give any guarantee for payment of money or the performance of any contract obligation or undertaking by any person, firm, company, corporation or association;
- (f) to vary or transpose any investments into or for any other or others of any nature whatsoever and to vary the terms of or property comprised in any security;
- (g) to hold, use, purchase, construct, demolish, maintain, repair, renovate, reconstruct, develop, improve, sell, transfer, convey, surrender, let, lease, exchange, take and grant options or rights, mortgage, charge, pledge, reconvey, release or discharge or otherwise deal with any real personal Property and in particular with shares, debentures or securities of any company and with or without deferred, restricted, qualified or special rights relating thereto;
- (h) to purchase or acquire any reversionary or deferred Property or rights of any description or any life or life endowment or sinking-fund or term or other policy or policies of insurance of whatsoever nature and at or subject to any premium or premiums whether single or payable periodically and with or subject to any options, rights, benefits, conditions or provisions whatsoever and to pay out of the income or capital of the Trust Fund as the Trustee in its absolute discretion thinks fit all sums payable from time to time for premiums or otherwise for the effecting or maintenance of any policy or policies of insurance (whether owned by the Trustee or otherwise) or for the exercise or enjoyment of any option, right or benefit thereunder and any surrender of any such policy or policies shall for all the purposes of this Deed be deemed to be a sale thereof;

- (i) to pay out of the Trust Fund all costs, charges and expenses incidental to the management of the Trust Fund or to the exercise of any power, authority or discretion contained in this Deed or in carrying out or performing the trusts contained in this Deed, which the Trustee may at any time incur, including (without limitation) all income tax or other taxes payable in respect of the Trust Fund, costs in any way connected with the preparation and execution of this Deed and all moneys which the Trustee may be required to pay as settlement, probate, estate, gift, stamp, financial institutions or settlement duties payable in respect of the Trust Fund or on this Deed;
- (j) to exercise all rights and privileges and perform all duties and to do all acts, matters and things appertaining to any shares, stock or debentures in any Corporation for the time being subject to the trusts contained in this document. as the Trustee could do if the Trustee was the beneficial owner of the shares, stock or debentures or was personally interested or concerned in the Corporation and (without limitation):
 - (i) to assent to any arrangements modifying those rights, privileges or duties;
 - (ii) to agree to any scheme or arrangement for the reconstruction, increase or reduction of the capital of any Corporation;
 - (iii) to make any agreement in respect of, or in the course of, the winding up of any company;
 - (iv) to deposit, surrender or exchange, or pay any calls, contributions or other necessary expenses in connection with, any of those shares, stock or debentures or the title to them;
- (k) to employ or retain or consult any person in connection with any trade or business carried on by the Trustee or in connection with anything required to be done pursuant to the provisions of this Deed including the receipt and payment of money to delegate to any such person any power, authority or capacity of the Trustee and to decide the remuneration to be allowed and paid to such person and to create or arrange and contribute to any superannuation, retirement, benefit or pension scheme for the benefit of any person so employed;
- (l) to partition or agree to the partition of or to subdivide or agree to the subdivision of any land or other Property which or any interest in which may for the time being be part of the Trust Fund and to pay any moneys by way of equality for partition;
- (m) to open any account or accounts with any bank or banks or other financial institutions and to operate in all usual ways any such account or accounts;
- (n) to give effectual receipts and discharges for any moneys received by or on behalf of the Trustee or otherwise relating to any of the acts, matters and things provided for in this Deed;
- (o) to take such action as the trustee shall think fit for the adequate protection of any part or parts of the Trust Fund and to do all such other things as may be incidental to the exercise of the powers and authorities conferred on the Trustee by this Deed;

- (p) to take and act upon the opinion (given in writing) of a professional adviser practising in any country where the Trust Fund or any part thereof may for the time being be invested in relation to the interpretation or effect of this Deed or any other document or statute or as to the administration of this Trust, without being liable to any of the Beneficiaries in respect of any act done by the Trustee in accordance with such opinion (provided that nothing in this provision shall prohibit or impede the trustee from applying to any Court if the Trustee shall deem fit, or prohibit any of the Beneficiaries from so doing);
- (q) to remunerate any Beneficiary who is at any time employed by the Trustee to the same extent and in the manner as if the Beneficiary so employed were not a Beneficiary, and all bona fide payments made by the Trustee to that Beneficiary in or on account of expenses in connection with such employment (including without limitation out-of-pocket expenses or fringe benefit taxes) shall not be or be deemed to be payment to the Beneficiary of or on account of the Beneficiary's share in the Trust Fund or the Income;
- (r) to permit any asset of the Trust to be held or registered in the name of any nominee of the Trustee and to deposit securities belonging to or related to the Trust Fund with any bank or other financial institution;
- (s) to determine all questions and matters of doubt which may arise in the course of the management, administration, realisation, liquidation, partition or winding up of the Trust Fund;
- (t) to conduct farming operations and/or take on lease or grant leases of all or any part of the Property forming part of the Trust Fund;
- (u) to institute and defend proceedings at law and to proceed to the final end and determination thereof or compromise the same as the Trustee shall consider advisable;
- (v) to incorporate or promote the incorporation of any Corporation in any place under the law of that place at the expense of the Trust Fund with limited or unlimited liability and to sell to any such Corporation the whole or any part of the Trust Fund and so that the consideration for the sale of the Trust Fund or any part thereof to any such Corporation may consist wholly or partly of securities of such Corporation which may be credited as fully paid and may be allotted to or otherwise vested in the Trustee and be capital moneys in the Trustee's hands.

The following further powers shall apply to any such incorporation or sale:

- (i) that all or any part of the expenses in connection with such formation or formations and sale or sales may be paid out of the Trust Fund;
- (ii) that the Trustee may become a director or servant of any such Corporation and may receive the remuneration attaching to such office without being liable to account for the same and that any Trustee may become qualified as a director (if the relevant articles of association permit) by the holding in the Trustee's own name of shares forming part of the Trust Fund provided that the Trustee executes a declaration of trust thereof in favour of this Trust and delivers to any other Trustee the certificates (if any) of such shares and that the Trustee accounts to this Trust for all dividends and bonuses payable in respect thereof;

(iii) that the consideration for any such sale or sales may comprise, in such proportion as the Trustee may think fit, all or any of either cash, debentures, or debenture stock, preference (redeemable or otherwise) or ordinary or deferred shares (whether fully or partly paid) and with such rights attaching thereto including without limiting the generality of the foregoing the right to convert from time to time from one to the other as the Trustee may think fit;

(iv) that the price for any sale or sales shall be fixed in such manner as the Trustee may determine;

- (w) to deposit the securities or documents of title to Property of the Trust with a bank, trust company, investment broker or like institution in any part of the world and to delegate to such bank, trust company, investment broker or other like institution such of the trusts and powers hereby or by law vested in the Trustee with reference to the Property the subject of the securities or documents of title so deposited as the Trustee may consider expedient so to delegate, and the Trustee shall not be liable or responsible for any loss whatsoever not caused by the Trustee's own fraud which may in any manner occur in relation thereto;
- (x) to establish and support out of the Trust Fund any associations, institutions, funds, schemes or other trusts calculated to benefit the Beneficiaries or the employees or ex-employees of this Trust or of any Corporation, partnership, association, union of interest or syndicate in which this Trust may be interested or the dependants or associates of such persons and to grant pensions and allowances and to make payments towards insurance;
- (y) to make out of this Trust from time to time to any person or persons or to any associations or institutions or Corporations or charities except the Settlor and the Settlor's estate or any corporation or Trust in which the Settlor or the Settlor's estate has any actual or contingent beneficial interest such gifts or advances as the Trustee in its absolute discretion may think fit whether such gifts or advances shall be for religious, charitable or benevolent purposes or objects or not;
- (z) to exchange Property for other Property of a like or different nature and for such consideration and on such conditions as the Trustee may consider advisable;
- (aa) to compromise and settle or compound for such consideration and upon such terms and conditions as the Trustee may consider advisable all or any actions, suits, proceedings, differences, demands or matters relating to the Trust or to the Trust Fund and all such compromises and settlements shall be binding on all the Beneficiaries and others who at any time acquire any interest in this Trust;

(ab) to carry on any business which the Trustee may in the absolute discretion of the Trustee deem fit either alone or in association with any other person, Corporation or trust or in partnership including (without restricting the generality hereof) associations or partnerships with the Trustee either in the Trustee's own right or in the capacity of Trustee or in any other capacity or with a Corporation or Corporations in which the Trustee is directly or indirectly interested either in the Trustee's own right or in the capacity of Trustee or in any other capacity and for such purpose to retain and employ the whole or any part of the Trust Fund and also to advance for the purposes of the same such further moneys forming part of the Trust Fund as the Trustee shall think proper and to expend any moneys forming part of the Trust Fund in managing and carrying on the same including the purchase or acquisition of any Property and if the Trustee considers necessary in the course of such management or carrying on the same to borrow and raise moneys and to mortgage and give security over any property forming part of the assets of such venture with priority (if the Trustee thinks fit) over any charge hereby created and generally to act in all matters relating to the said venture as if the Trustee were beneficially entitled thereto and it is further provided that if an associate or partner of any such venture dies the Trustee may carry on that venture in association or partnership with the estate of the deceased associate or partner for so long as the Trustee and/or the legal personal representatives of the deceased associate or partner think fit and it is further provided that the Trustee may in its absolute discretion employ in any such venture as manager, overseer, workman or other necessary employee any of the Beneficiaries;

(ac) to delegate the exercise of all or any of the powers, authorities or discretions (including a power which the Trustee has a duty to exercise) hereby conferred on the Trustee to any person on such terms and conditions as it thinks fit and to execute any Power of Attorney or other instrument intended to effectuate such purpose. The Trustee may revoke any such delegation and may exercise any such power itself concurrently with or to the permanent or temporary exclusion of a delegate;

(ad) to exercise such powers (if any) as the Settlor and the Trustee may agree on in writing.

B. Without prejudice in any way to the generality of Clause 8A when a Corporation, the shares, notes or debentures or other securities of which are included in the Trust Fund, offers to the Trustee rights to subscribe for new shares notes or debentures or other securities the Trustee may in the discretion of the Trustee do any of the following things:

- (a) Sell the whole of such rights and treat the proceeds as part of the Income for the Accounting Period in which such proceeds were received.
- (b) Sell some of such rights and use the proceeds or part of the proceeds to subscribe for the shares, notes or debentures or other securities covered by the remainder of such rights in which case the new shares, notes or debentures or other securities subscribed for shall be part of the investments of the Trust Fund.
- (c) Raise out of the Trust Fund such sum as is required to subscribe for such new shares, notes or debentures or other securities and apply it accordingly, in which case also the new shares, notes or debentures or other securities shall be part of the investments of the Trust Fund.

C.(1) Notwithstanding any other provision in this Deed, the Trustee may

- (a) sell, transfer, hire lease or dispose of any Property of the Trust;
- (b) buy, take a transfer, acquire, hire or lease any Property or borrow any moneys;

(c) or carry on or carry out any profit-making undertaking or scheme in partnership;

to, from or with (as the case may be):

(i) the Trustee in its personal capacity or as trustee of any other trust fund or otherwise;

(ii) any company or partnership even if the Trustee is a shareholder, director or member of that company or partner of that partnership; or

(iii) a Spouse or Child of any Trustee;

(d) sell to the Trustee in its capacity as trustee of any other Trust Fund, either for cash or upon terms, any assets being company shares or joint or undivided interest in Property where other shares in the same company or another joint or undivided interest in the same Property are held by the trustee in that other capacity;

(e) divide assets in specie between the Trust Fund and any other trust fund in any manner that the Trustee determines; and

(f) generally deal with the Trustee in its personal capacity in all respects as if there were two separate persons to the dealings even if the Trustee may be entitled to any benefit pursuant to this Deed.

C.(2) Without limiting Clause 8C(1)

(a) any Trustee or a director of any Trustee may become a director, officer or shareholder of a company or a trustee, beneficiary or unit holder in any trust or a partner or proprietor of any business in which any part of the Trust Fund is from time to time invested and may receive the remuneration attaching to such position without being liable to disclose that interest or to account to the Trustee or to the beneficiaries;

(b) any Trustee may exercise or concur in exercising all powers vested in, and discretions conferred on, the Trustee even though the Trustee or a director of the Trustee has or may have a direct or personal interest in, or receives or may receive any benefit from, the mode or result of exercising such power or discretion;

(c) no contract, arrangement, mortgage, charge, security, loan facility, credit accommodation, guarantee, indemnity or other transaction entered into or contracted for by the Trustee shall be voidable by reason of a direct or personal interest or any benefit arising to any Trustee or a director of any Trustee, directly or indirectly, as a result of the exercise of any power or discretion; and

(d) no Trustee having any direct or personal interest or receiving any benefit pursuant to Clause 8C(2)(b) shall be liable to disclose that interest or to account to the Trustee or to the beneficiaries for that benefit.

9. TRUSTEE - SPECIAL POWERS AND DISCRETIONS

- A. Every discretion or power hereby conferred upon the Trustee shall subject to Clause 8A(ad) be exercisable by the Trustee in the absolute and uncontrolled discretion of the Trustee.
- B. The Trustee:
- (a) shall be indemnified out of the Trust Fund from and against any expense and liability that may be incurred in prosecuting, defending or intervening in any action or suit in respect of the provisions of this Deed, except where the action or suit arises out of any act of deceit, neglect or default or breach of trust by the Trustee.
 - (b) shall not incur any liability to anyone in respect of doing or performing or failing to do or perform any act or thing which, by reason of any provision of any present or future law of any State or Territory or the Commonwealth of Australia thereof or any ordinance rule regulation or by-law made pursuant thereto or of any decree order or judgement of any court of competent jurisdiction either the Trustee is required to do or perform or is hindered prevented or forbidden from doing or performing.
 - (c) shall not incur any liability to anyone in consequence of the Trustee relying in good faith on information provided to the Trustee by any Beneficiary or any other person on behalf of a Beneficiary which proves to be incorrect.
 - (d) shall not be liable to account to Beneficiaries of the legal personal representative of a Beneficiary for any payments made by the Trustee in good faith to any duly empowered fiscal authority for taxes imposts or other charges made upon or in respect of the Trust or with respect to any transaction involving the Trust, notwithstanding that any such payment ought or need not have been made except to the extent that such payments may be attributable to the Trustee's own act of deceit, neglect or default.
 - (e) may act upon information obtained from Beneficiaries or the opinion advise of or information obtained from barristers or solicitors being persons independent of the Trustee and instructed by the Trustee and upon any statement of or information obtained from any bankers accountants or other persons appointed by the Trustee being persons independent of the Trustee and believed by the Trustee in good faith to be the expert in relation to the matters upon which they are consulted and the Trustee is not liable for anything done or suffered by it in good faith in reliance upon any such opinion advise statement or information.
 - (f) shall not be responsible for any misconduct mistake oversight error of judgement forgetfulness or want of prudence on the part of any auditor, actuary, approved valuer, attorney, banker, receiver, receiver and manager, barrister, solicitor, agent or other person acting as agent or adviser of the Trustee except to the extent that such loss is attributable to the Trustee's own act of deceit, neglect or default.
 - (g) shall not be liable for any action taken or thing suffered by the Trustee in reliance upon any notice, resolution, direction, consent, certificate, receipt, affidavit, statement, holding out, certificate for stock, plan of re-organisation, application or other paper or document reasonably believed by the Trustee to be genuine and to have been possessed, produced, passed, signed or endorsed by the proper parties where liability but for this indemnity would attach by reason solely that such paper or document was not, in fact, genuine or so possessed produced passed signed or endorsed.

- C. Save and except in the case of fraud or of dishonesty or unless the Trustee shall have failed to show the degree of prudence and diligence required of a trustee having regard to the powers authorities and discretions conferred on the Trustee by this Deed in no event shall the Trustee be bound to make any payment to Beneficiaries or the legal personal representatives of Beneficiaries except out of the Trust Fund or be liable to Beneficiaries or the legal personal representatives of Beneficiaries to any greater extent than the moneys and assets of the Trust Fund vested in or received by the Trustee in accordance with this Deed.
- D. Should the Trustee purchase or otherwise acquire any authorised investment in regard to which there is liability, the Trustee will have a right of indemnity out of the Trust Fund in respect of that liability except to the extent that such liability may be attributable to the Trustee's own act of deceit, neglect or default.
- E. In the event that the Trustee has incurred a liability as Trustee and the Trustee is entitled under the terms of this Deed or as otherwise allowed by law to be indemnified in respect of such liability out of the Trust Fund the Trustee may claim such indemnity from the Trust Fund but the Trustee shall not be entitled to be indemnified for that liability by any Beneficiary unless by a separate agreement with that Beneficiary.
- F. Where there is more than one Trustee neither shall be bound to take proceedings against the other for any breach or alleged breach of trust.
- G. All persons claiming any beneficial interest in over or upon the Property of this Trust shall be deemed to take with notice of and subject to the protection hereby conferred upon the Trustee.

10. TRUSTEE - DETERMINATIONS

- A. Any determination or exercise by the Trustee of any power discretion or authority conferred on the Trustee by this Deed may be made:
 - (a) by oral declaration of the Trustee or resolution of the Trustee recorded in the records or minutes of the Trustee; or
 - (b) in writing signed by the Trustee.
- B. Any Trustee which is a Corporation may exercise or concur in exercising any discretion or power conferred on the Trustee by this Deed by a resolution of the Corporation or by a resolution of its board of directors or governing body or may delegate the right and power to exercise or concur in exercising any such discretion or power to one or more members of its board of directors or governing body appointed from time to time by the board of directors or governing body for that purpose and such a resolution shall be effective whether the resolution was properly recorded in minutes or not.
- C. Once a determination has been made in a manner authorised by Clause 10A or 10B it shall be irrevocable insofar as the determination is a decision to distribute Income.

11. TRUSTEE - APPOINTMENT AND REMOVAL - APPOINTMENT OF SUCCESSOR

- A. The power of appointing a new Trustee is vested in the Principal provided that the Settlor may not be appointed a Trustee.
- B. The Principal may at any time and from time to time without the consent of any person by deed remove any Trustee from the office of Trustee and may also at any time and from time to time and without the consent of any person by deed appoint any person or Corporation to be a Trustee either alone or jointly with any continuing Trustee.
- C. Any Trustee may at any time resign on giving not less than 30 days' written notice to the Principal and shall thereupon be discharged from its obligations under this Deed.
- D. The office of a Trustee shall ipso facto be determined and vacated if the Trustee being an individual dies or is found to be of unsound mind or a person whose personal estate is liable to be dealt with in any way under the law relating to mental health or if the Trustee becomes bankrupt or makes any arrangement or composition with the Trustee's creditors generally or if the Trustee being a Corporation has a receiver appointed or enters into official management or has a petition for its winding up presented to the Court or passes a resolution for its winding up or enters into a scheme of arrangement (not being merely for the purpose of amalgamation or reconstruction).
- E. If at any time it appears to the satisfaction of the Trustee that it would be desirable so to do the Trustee may resign and by instrument in writing appoint a successor as the Trustee and transfer to such Trustee the Trust Fund.

12. CARRY FORWARD OF LOSSES

If the Trustee in any Accounting Period makes a loss in carrying on any business pursuant to this Deed the loss shall not be required to be met out of the capital of the Trust Fund but may be carried forward and met out of the Income of future Accounting Periods.

13. RULE AGAINST PERPETUITIES

The exercise of the Trustee's discretion under this deed shall be subject in all respects to the rule of law known as the rule against perpetuities to the intent that no part of the capital of the Trust Fund or the Income shall be paid or be capable of being paid by the Trustee to the trustees of any other trust unless the persons entitled to the capital of that other trust attain vested interests within the period allowed by law.

14. AMENDMENT OF DEED

The Trustee may by deed or resolution at any time revoke, add to, release, delete or vary all or any of the trusts or powers declared in this Deed or any trusts or powers declared by any revocation, addition, release, deletion or variation made to this Deed from time to time and may by the same or any other deed or resolution declare any new or other trusts or powers concerning the Trust or parts or part of the Trust Fund provided that:

- (a) the rule against perpetuities is not infringed; and

- (b) the revocation, addition, release, deletion or variation shall not be in favour of the Settlor or the Settlor's estate or any Corporation or trust in which the Settlor or the Settlor's estate has any actual or contingent beneficial interest; and
- (c) the revocation, addition, release, deletion or variation shall not affect the beneficial entitlement of any Beneficiary to any account to which the Beneficiary became entitled under this Deed prior to the date the revocation, addition, release, deletion or variation is effected.

Any other person or persons upon whom any power is conferred by this Deed may release and revoke any power or powers so conferred on that person or persons and upon the exercise of any release or any revocation pursuant to this Clause 14 the power or trust so released and revoked shall be absolutely and irrevocably determined. The expression "trusts or powers" where used in this Clause 14 shall be deemed to include all the provisions of this Deed or of any other deed or resolution revoking, adding to, releasing, deleting or varying this Deed.

15. APPLICABLE LAW

In addition to the express powers conferred on the Trustee by this Deed, the Trustee shall be entitled to exercise in respect of the Trust Fund wherever situate all or any of the powers, authorities and discretions conferred on trustees by the Applicable Law and the rights and liabilities of the Trustee and of the Beneficiaries and every question arising under or in relation to this Deed and the Trust shall be regulated by the Applicable Law.

16. EXCLUSION FROM BENEFITS

It is declared that the Settlor and the Settlor's estate, and any Corporation or trust in which the Settlor or the Settlor's estate has any actual or contingent beneficial interest are specifically excluded from all or any benefits whatsoever under this Trust except the Trustee in respect of the fees, charges and remunerations of the Trustee under Sub-clause 6D.

17. EXCLUSION OF BENEFICIARY AT OWN REQUEST

Any person being a Beneficiary may by oral declaration recorded in the minutes or records of the Trustee or by written notice to the Trustee at any time exclude himself or herself from the class of Beneficiaries and no further sums whether of Income or of capital shall be allocated or set aside or paid to or otherwise applied to or for the benefit of such person provided however that any such notice shall not affect the beneficial entitlement to any amount set aside for such Beneficiary or amount held in trust for such Beneficiary prior to the date of such notice.

18. PAYMENT TO CHARITY

The Trustee may pay any sum to which any charitable body may become entitled or to which the Trustee desires to make any payment to the secretary or honorary treasurer of such body for the time being without being bound to see to the further application thereof.

19. INVESTMENT IN NAME OF NOMINEE

It shall not be necessary for the title to any property forming part of the Trust Fund to be registered in the name of the Trustee but the same may in the discretion of the Trustee be registered in the name of a nominee of the Trustee or any other name.

20. ACCOUNTS, RECORDS, INFORMATION AND DOCUMENTS

- A. The Trustee shall keep complete and accurate records of all receipts and expenditures on account of the Trust Fund.
- B. Promptly after the close of each Accounting Period, the Trustee shall prepare a written accounting report (prepared in accordance with the accounting practices and standards generally accepted in Australia) for that Accounting Period consisting of:
 - (a) a statement of income and expenditure;
 - (b) a list of assets and liabilities at the close of that Accounting Period.
- C. A copy of the accounting report shall be furnished upon request to each Beneficiary.
- D. Without prejudice to any right of the Trustee to refuse disclosure of any document, the Trustee shall not be bound to disclose to any person:
 - (a) a document disclosing:
 - (i) the deliberations of the Trustee as to the manner in which the Trustee should exercise a power vested in, or discretion conferred on, the Trustee by this Deed;
 - (ii) the reasons for a particular exercise of or failure or refusal to exercise, a power or discretion by the Trustee, or the material upon which those reasons were or might have been based; or
 - (b) any other document relating to the exercise or proposed exercise of a power or discretion conferred by the Trustee (not being legal advice obtained by the Trustee as an expense of the Trust Fund).

IN WITNESS WHEREOF the parties have executed these presents on the date in the Schedule.

SIGNED SEALED and DELIVERED by the
said Gol D. Roger in the presence of:

.....
Settlor

.....
Witness

THE COMMON SEAL of Hubbas Pty Ltd was
hereunto affixed by authority of its Board of
Directors in the presence of:

.....
Director/Sect



Schedule

Date of Making this Deed	6th September 1996
Settlor	Gol D. Roger
Settlor's Address	1 Rafftel Lane Syndey 2000
Settlor's Occupation	Company Director
Settled Sum	\$100.00
Trustee	Hubbas Pty Ltd A.C.N. 075 429 686
Address of registered office	C/-52-54 Balgowlah Road Balgowlah 2093
Beneficiaries	Eustass Kidd (D.O.B. 04/7/1993) Fexary Pty Ltd ACN 075 322 520
Principal	Gol D. Roger
State or Territory	New South Wales
Name of Trust	Tom Lane Group Trust